

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/07/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008488

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M.GIL

PLAINTIFF: FREDERIC KLASKE

vs.

DEFENDANT: VOLKSWAGEN GROUP OF
AMERICA, INC., ET AL

NATURE OF PROCEEDINGS: MOTION – ADMISSIONS - DISCOVERY FACILITATOR
PROGRAM

RULING

Defendant filed a Motion to Compel Admissions on May 13, 2026. Marin County Rule, Civil 2.13B, requires the court to appoint a Discovery Facilitator to assist the parties to resolve discovery matters. Unfortunately, it appears that a Discovery Facilitator was not timely appointed to assist the parties to resolve the issue.

Given this, the Court is not surprised to have not received a Declaration of Non-Resolution from either party. MCR Civ 2.13H.

The matter is continued to the next motion hearing date of October 2, 2026, at 1:30 p.m. in the department to provide the parties with more time to meaningfully participate in the facilitator program. The motion will be heard with Defendant's Motion to Compel Interrogatories, which is also set for hearing on that date.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/07/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008727

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M.GIL

PLAINTIFF: SHERRI ANDREA
ANDERSON

vs.

DEFENDANT: TIBERIOUS WALLACE

NATURE OF PROCEEDINGS: MOTION - RECONSIDERATION

RULING

A motion for reconsideration may be brought by a party or the court on its own motion to revisit an interim or final order prior to the entry of final judgment. Such a motion must be based on new or different facts, circumstances, or a change in law and must be filed within ten days after service of written notice of entry of the order. The court retains inherent constitutional power to reconsider erroneous interim orders at any time before final judgment is entered, regardless of the specific provisions of CCP § 1008.

However, once a final judgment is entered, the court loses jurisdiction to grant a motion for reconsideration of an order that has been subsumed in that judgment. Entry of judgment divests the court of jurisdiction to rule on a motion for reconsideration. (*Ramon v. Aerospace Corp.* (1998) 50 Cal.App.4th 1233, 1237-1238.) After judgment, a trial court cannot correct judicial error, except in accordance with statutory proceedings; e.g., motion for new trial (Code Civ. Proc. § 656, et seq.); or a motion to vacate judgment. (Code Civ. Proc. § 663.) (*Id.* at p. 1238.)

Here, a Civil Harassment Restraining Order was issued after a full and fair hearing on May 7, 2026. During the hearing the court took testimony from the Protected Person, Ms. Anderson, and the Restrained Person, Mr. Wallace. Percipient Witness James Folan was also called by the Plaintiff. This is a dispute regarding a Homeowners Association board member (Anderson) and a resident of the complex (Wallace).

Cal. Code of Civil Procedure § 1008 is the exclusive means for modifying, amending or revoking an order. It is expressly jurisdictional. (*Morite of California v. Superior Court* (1993) 19 Cal.App.4th 485, 490.) Section 1008 requires that the motion for reconsideration of an order must be “based upon new or different facts, circumstances, or law,” and supported by an affidavit stating, “what application was made before, when and to what judgment, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc. § 1008(a).) To merit reconsideration, the party must give a satisfactory reason why it was unable to present its new evidence at the original hearing.